

Robert K. Phillips [SBN 135088]
Priya D. Navaratnasingham [SBN 252686]
Alberto Reyna [SBN 347323]
PHILLIPS, SPALLAS & ANGSTADT LLP
560 Mission Street, Suite 1010
San Francisco, California 94105
Telephone: (415) 278-9400
Facsimile: (415) 278-9411

Attorneys for Defendant
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

01/17/2025
Clerk of the Court
BY: YOLANDA TABO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQOUR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 17 TO
**PRECLUDE PLAINTIFF FROM USING
OR REFERENCING AN ALLEGED 911
TRANSCRIPT LOG AND AUDIO
RECORDING AS IT WAS NOT
DISCLOSED IN DISCOVERY, LACKS
FOUNDATION AND IS INADMISSIBLE
HEARSAY****

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded

1 from the jury's hearing. Although a Motion *in Limine* is not specifically mentioned by any California
2 statute, it has long been accepted as part of the Court's power to conduct trial in an orderly manner. (See
3 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
4 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
5 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
6 presence of a jury. See Cal. Evid. Code § 402.

7 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

8 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
9 DYLAN ROSARIO *in pro per* ("Plaintiff"), Plaintiff's witnesses, and any other parties and their agents,
10 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
11 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
12 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff's witnesses of the
13 Court's Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
14 discussed below.

15 **A. Purported 911 Log and Recording Should be Excluded as it Was Not Disclosed in**
16 **Discovery; Lacks Foundation and is Inadmissible Hearsay**

17 Defendant anticipates that Plaintiff will try to introduce an unauthenticated document entitled
18 "Official Transcript of 911 Call" and an unauthenticated audio recording which Plaintiff purports to be a
19 911 call log and an audio recording of a 911 call relating to the incident. First, this alleged log and
20 recording were not produced during discovery, rather produced at the eleventh hour prior to trial.
21 Second, both the alleged log and recording completely lack foundation, are not authenticated and is
22 inadmissible hearsay. Defendant has no idea where this 911 call log or audio recording came from and
23 who created it.

24 Defendant seeks an order precluding Plaintiff from offering the alleged 911 call log and the
25 recording into evidence as Plaintiff. This Order applies to every stage of trial. Violations of this Order
26 shall be grounds for such relief as the Court, in its discretion, deems proper, up to and including the
27 granting of a mistrial. This Order shall be made pursuant to the court's holding in *Deeter v. Angus*
28 (1986) 179 Cal.App.3d 241.

1 If Plaintiff failed to produce documents or audio recordings in his possession which were
2 requested, this clearly would constitute a misuse of the discovery process. Code of Civil Procedure §
3 2023. Courts have found that withheld evidence, including documents, is appropriately excluded
4 because, among other reasons, it “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal.
5 App. 3d at 255. Further, this Court has the authority to exclude at trial any and all evidence that Plaintiff
6 has withheld from discovery. *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

7 Further, California *Evidence Code* § 1401 provides: “(a) Authentication of a writing is required
8 before it may be received in evidence. (b) Authentication of a writing is required before secondary
9 evidence of its content may be received in evidence.”

10 California *Evidence Code* § 403 provides: “(a) The proponent of the proffered evidence has the
11 burden of producing evidence as to the existence of the preliminary fact, and the proffered evidence is
12 inadmissible unless the court finds that there is evidence sufficient to sustain a finding of the existence
13 of the preliminary fact, when: (1) The relevance of the proffered evidence depends on the existence of
14 the preliminary fact; (2) The preliminary fact is the personal knowledge of a witness concerning the
15 subject matter of his testimony; (3) The preliminary fact is the authenticity of a writing; or (4) The
16 proffered evidence is of a statement or other conduct of a particular person and the preliminary fact is
17 whether that person made the statement or so conducted himself.”

18 California *Evidence Code* § 1200 states that “(a) “Hearsay evidence” is evidence of a statement
19 that was made other than by a witness while testifying at the hearing and that is offered to prove the
20 truth of the matter stated. (b) Except as provided by law, hearsay evidence is inadmissible.”

21 “Hearsay may be briefly understood as an out-of-court statement offered for the truth of its
22 content. Evidence Code section 1200, subdivision (a) formally defines hearsay as “evidence of a
23 statement that was made other than by a witness while testifying at the hearing and that is offered to
24 prove the truth of the matter stated.” A “statement” is “oral or written verbal expression” or the
25 “nonverbal conduct of a person intended by him as a substitute for oral or written verbal expression.”
26 (Evid.Code, § 225.) Senate committee comments to Evidence Code section 1200 explain that a
27 statement “offered for some purpose other than to prove the fact stated therein is not hearsay.” [Internal
28 Citation Omitted] Thus, a hearsay statement is one in which a person makes a factual assertion out of

1 court and the proponent seeks to rely on the statement to prove that assertion is true. Hearsay is
2 generally inadmissible unless it falls under an exception. (Evid.Code, § 1200, subd. (b).)” (*People v.*
3 *Sanchez* (2016) 63 Cal. 4th 665, 674)

4 Plaintiff has not provided any information as to the source of this audio file and transcript log nor
5 provided any documentation that would certify or authenticate said transcript log and audio file. Plaintiff
6 has not laid any foundation to establish the authenticity of the purported 911 call log and the audio
7 recording. Plaintiff has not established the chain of custody for either the log or the recording. Defendant
8 has no idea who created the log and recording, how they were maintained, how Plaintiff got them, or the
9 identity of the custodian of the log and recording. It does not appear that either the log or the recording
10 were obtained via proper subpoena process.

11 The document which Plaintiff purports is an alleged 911 call log and the alleged audio recording
12 lack foundation and is inadmissible hearsay.

13 **III. CONCLUSION**

14 For all the foregoing reasons, Defendant respectfully requests and moves to preclude Plaintiff
15 from using or referencing a 911 audio recording and transcript log at trial.

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17 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

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20 Robert K. Phillips
21 Priya Navaratnasingham
22 Alberto Reyna
23 Attorneys for Defendant
24 SUBHI ABDELHALIM
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